

26VECV00127 26VECV00127

County: los-angeles

Division: Civil Law and Motion

Department: U

Hearing date: 2026-09-11

Motion: DEFENDANT LIDA KOHANSAMEH'S MOTION FOR LEAVE TO FILE A CROSS-COMPLAINT

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Case Number: 26VECV00127 Hearing Date: September 11, 2026 Dept: U

SUPERIOR

COURT OF THE STATE OF CALIFORNIA

FOR

THE COUNTY OF LOS ANGELES - NORTHWEST DISTRICT

9000 Arlington

Ave LLC,

Plaintiff,

vs.

RICHARD IRWIN KANE, ET AL.,

Defendants.

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CASE NO: 26VECV00127

[TENTATIVE] ORDER RE: DEFENDANT LIDA
KOHANSAMEH'S MOTION FOR LEAVE TO FILE A CROSS-COMPLAINT

Dept. U

8:30 a.m.

September 11, 2026

I.

BACKGROUND

This case is a quiet title action arising
from an alleged wrongful foreclosure sale.

On January 8, 2026, Plaintiff 9000 Arlington
Ave LLC ("Plaintiff") filed its complaint against Defendants Richard Irwin Kane
("Kane"), Trustee of The Richard Irwin Kane 2006 Trust; Bronzetree Terraces,
LLC ("Bronzetree"); RTI Properties, Inc. ("RTI"); Rediger Investment Mortgage
Fund ("Rediger"); Peak Foreclosure Services, Inc. ("Peak"); and Lida Kohansameh
("Kohansameh"), alleging: (1) wrongful foreclosure; (2) cancellation of
instruments; (3) promissory estoppel; and (4) quiet title.

On January 13, 2026, Plaintiff filed a notice

of recording lis pendens against real property that is the subject of this action.

On January 21, 2026, Kohansameh filed her answer to the complaint.

On March 3, 2026, Plaintiff dismissed Rediger as a defendant from this case.

On June 1, 2026, Kohansameh filed her application for a temporary restraining order ("TRO") and order to show cause ("OSC") re: preliminary injunction.

Also on June 1, 2026, Plaintiff filed its opposition brief.

On June 2, 2026, Judge Anthony Mohr granted in part Kohansameh's application for a TRO and entered an order that Plaintiff be, among other things, "immediately restrained and enjoined from performing, directing, permitting, or causing any construction, alteration, or work of any kind at 23476 Palm Drive, Calabasas, California 91302, pending further order." (Order dated June 2, 2026, ¶ 1.) Judge Mohr declined to issue part of Kohansameh's proposed order that would require Plaintiff to immediately vacate the property.

On June 8, 2026, Kohansameh filed the instant motion for leave to file a cross-complaint.

On June 12, 2026, Judge Mohr set a hearing on an OSC re: preliminary injunction for July 6, 2026.

On June 17, 2026, Kohansameh filed an attorney declaration in support of her request for an order continuing the hearing on the OSC re: preliminary injunction.

On June 23, 2026, Judge Yolanda Orozco sustained, with leave to amend, Kane's demurrer to the complaint and granted, with leave to amend, Kane's motion to strike portions of the complaint.

On July 6, 2026, the Court entered the parties' joint stipulation to continue the hearing on the OSC re: preliminary injunction to August 5, 2026.

On July 14, 2026, Plaintiff filed its first amended complaint against Kane, Bronzetre, RTI, Peak, and Kohansameh, alleging: (1) wrongful foreclosure; (2) cancellation of instruments; (3) promissory estoppel; and (4) quiet title.

As of 5:00 P.M. September 8, 2026, no opposition has been filed.

II.

LEGAL STANDARD

"A

party against whom a cause of action has been asserted in a complaint...may file a cross-complaint setting forth...Any cause of action he has against any of the parties who filed the complaint...against him." (Code Civ. Proc., § 428.10, subd. (a).) "Any cause of action he has against a person

alleged to be liable thereon, whether or not such person is already a party to the action, if the cause of action asserted in his cross-complaint (1) arises out of the same transaction, occurrence, or series of transactions or occurrences as the cause brought against him or (2) asserts a claim, right, or interest in the property or controversy which is the subject of the cause brought against him." (Code Civ. Proc., § 428.10, subd. (b).) A cross-complaint may name a person as a cross-defendant, whether or not already a party, if joinder would be permitted had the cross-complaint been filed as an independent action. (Code Civ. Proc., § 428.20.)

"Leave

may be granted in the interest of justice at any time during the course of the action." (Code Civ. Proc., § 428.50, subd. (c).) Where the proposed cross-complaint asserts a related cause of action against a party who filed the complaint, leave is governed by section 426.50, under which the court "shall grant ... leave ... to file the cross-complaint ... if the party who failed to plead the cause acted in good faith," a provision to be "liberally construed to avoid forfeiture of causes of action." (Code Civ. Proc., § 426.50.) A motion to file such a

cross-complaint “must be granted unless bad faith of the moving party is demonstrated where forfeiture would otherwise result.” (Silver Organizations, Ltd. v. Frank (1990) 217 Cal.App.3d 94, 98-99.)

III.

DISCUSSION

Kohansameh moves for an order granting leave to file a cross-complaint for private nuisance, waste, trespass, fraud, negligence, and injunctive relief against Plaintiff, Cole Moscatel, RTI Properties, Inc., and Roes 1 through 100. Kohansameh contends the proposed claims arise from newly discovered facts concerning alleged unpermitted and substandard construction at 23476 Palm Drive, Calabasas, CA (“Subject Property”).

Kohansameh’s motion is granted. First, the proposed cross-complaint satisfies section 428.10, subdivision (b). This action is a quiet title action concerning title to and the condition of the Subject Property, and the proposed cross-complaint asserts claims, rights, and interests in that same property and controversy. (Code Civ. Proc., § 428.10, subd. (b).) The cross-claims arise directly from conditions at the Subject Property already at issue in this matter.

Second, to the extent the proposed cross-complaint names cross-defendants not already parties to this action, including Cole Moscatel and the Roe cross-defendants, their joinder is proper because the claims against them concern the same property and controversy. Joinder would be permitted had the cross-complaint been filed as an independent action. (Code Civ. Proc., §§ 428.10, subd. (b), 428.20.) Further, RTI Properties, Inc. is already a defendant in this action.

Third, the motion is filed in good faith. Kohansameh received a notice from the City of Calabasas on May 20, 2026, regarding active code enforcement and unlawful, unpermitted construction at the Subject Property. (Kohansameh Decl., ¶ 3, Ex. 2.) Kohansameh asserts she was unaware of the existence of unpermitted work prior to receiving the notice and filed the instant motion shortly after. (Kohansameh Decl., ¶ 4.) The record discloses no bad faith, and section 426.50 must be liberally construed to avoid forfeiture of the related causes of action. (See Code Civ. Proc., § 426.50; see also Silver

Organizations, supra, 217 Cal.App.3d at pp. 98-99.)

Finally, the Court finds no prejudice to Plaintiff and further finds that granting leave serves the interest of justice. No opposition has been filed, and trial is scheduled for June 21, 2027. In fact, denial may lead to duplicative litigation, fragmented claims, and potential ongoing dangerous conditions at the property.

IV.

CONCLUSION

Defendant

Lida Kohansameh's motion for

leave to file a cross-complaint against Plaintiff 9000 Arlington Ave LLC is GRANTED.

Defendant

Lida Kohansameh is ORDERED

to give notice.

DATED: September 11, 2026

Lee

S. Arian

Judge

of the Superior Court